

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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DWAYNE LYKEN,

SUMMONS

Plaintiff,

Plaintiff designates New
York County as the place of
trial.

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MARCOVAN WILSON, POLICE OFFICER DAVID
MARTINEZ, and SERGEANT CHRISTOPHER
O'CONNELL,

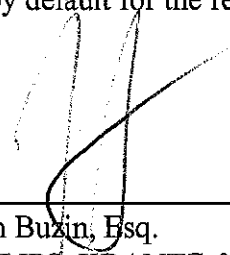
The basis of venue is:
Place of Occurrence

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 27, 2016



Heath Buzin, Esq.
PHILLIPS, KRANTZ & BUZIN, P.C.
Attorneys for Plaintiff
DWAYNE LYKEN
108 West 39th Street, Suite 600
New York, New York 10018
(212) 580-6500

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER MARCOVAN WILSON
Transit Division District 1
59th Street/Columbus Subway Station
New York, New York 10019

POLICE OFFICER DAVID MARTINEZ
Shield # 06624
Transit Division District 1
59th Street/Columbus Subway Station
New York, New York 10019

SERGEANT CHRISTOPHER O'CONNELL
Transit Division District 1
59th Street/Columbus Subway Station
New York, New York 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DWAYNE LYKEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MARCOVAN
WILSON, POLICE OFFICER DAVID MARTINEZ, and
SERGEANT CHRISTOPHER O'CONNELL,

Defendants.
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Index No.:

**VERIFIED
COMPLAINT**

Plaintiff **DWAYNE LYKEN**, by his attorneys, **PHILLIPS, KRANTZ & BUZIN, P.C.**,
complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

FIRST CAUSE OF ACTION

Violation of Rights Secured by 42 U.S.C. §1983 and the Fourteenth
Amendment to the United States Constitution for Seizing, Detaining,
Arresting, Imprisoning, Prosecuting and Assaulting the Plaintiff

1. At all times herein mentioned, Plaintiff **DWAYNE LYKEN** was, and still is, a
resident of the State of New Jersey.
2. The cause of action alleged arose in the County of New York, City and State of New
York.
3. At all times herein mentioned, Plaintiff **DWAYNE LYKEN** has duly complied with
all the conditions precedent to the bringing of this action and in particular, has, on November 9,
2015, and within the time prescribed by law, duly served upon Defendant, **THE CITY OF NEW
YORK**, a Notice of Claim stating, amongst other things, the time when and place where the injuries
and damages were sustained, and more than thirty (30) days have elapsed since the presentation of

said notice of claim, and such claim remains unadjusted and unpaid, and thereafter, and within the time provided by law, this action was commenced.

4. That on February 3, 2016, a hearing pursuant to General Municipal Law 50-H was held

5. Defendant **THE CITY OF NEW YORK** is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by **THE NEW YORK CITY POLICE DEPARTMENT**.

6. Defendant **THE NEW YORK CITY POLICE DEPARTMENT** is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for the Defendant **THE CITY OF NEW YORK** and assumes the risks incidental to the maintenance of its police force and the employment of police officers.

7. Defendant **POLICE OFFICER MARCOVAN WILSON** is and was at all times relevant herein an officer, employee and agent of **THE NEW YORK CITY POLICE DEPARTMENT**, a municipal agency of Defendant **THE CITY OF NEW YORK**. Defendant **MARCOVAN WILSON** is sued individually and in his official capacities.

8. Defendant **POLICE OFFICER DAVID MARTINEZ** is and was at all times relevant herein an officer, employee and agent of **THE NEW YORK CITY POLICE**

DEPARTMENT, a municipal agency of Defendant **THE CITY OF NEW YORK**. Defendant **DAVID MARTINEZ** is sued individually and in his official capacities.

9. Defendant **SERGEANT CHRISTOPHER O'CONNELL** is and was at all times relevant herein an officer, employee and agent of **THE NEW YORK CITY POLICE DEPARTMENT**, a municipal agency of Defendant **THE CITY OF NEW YORK**. Defendant **CHRISTOPHER O'CONNELL** is sued individually and in his official capacities.

10. At all times relevant herein, the individual defendants herein were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of **THE NEW YORK CITY POLICE DEPARTMENT** and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** at all times relevant herein with the power and authority vested in them as officers, agents and employees of **THE NEW YORK CITY POLICE DEPARTMENT** and incidental to the lawful pursuit of their duties as officers, employees and agents of **THE NEW YORK CITY POLICE DEPARTMENT**.

11. That on or about August 13, 2015, Plaintiff **DWAYNE LYKEN** was lawfully present at the Time Square - 42nd Street/Port Authority Bus Terminal Subway Station, County of New York, City and State of New York.

12. That at said time and place, Defendant **POLICE OFFICER MARCOVAN WILSON**, without a warrant, cause or provocation did seize, detain, arrest and imprison the Plaintiff **DWAYNE LYKEN**.

13. That at said time and place, Defendant **POLICE OFFICER MARCOVAN**

WILSON, without a warrant, cause or provocation did assault the plaintiff **DWAYNE LYKEN** by using unnecessary and/or excessive force on the plaintiff.

14. That Defendant **POLICE OFFICER MARCOVAN WILSON** initiated and participated in the malicious prosecution of the Plaintiff **DWAYNE LYKEN**.

15. That at said time and place, Defendant **POLICE OFFICER DAVID MARTINEZ**, without a warrant, cause or provocation did seize, detain, arrest and imprison the Plaintiff **DWAYNE LYKEN**.

16. That at said time and place, Defendant **POLICE OFFICER DAVID MARTINEZ**, without a warrant, cause or provocation did assault the plaintiff **DWAYNE LYKEN** by using unnecessary and/or excessive fore on the plaintiff.

17. That Defendant **POLICE OFFICER DAVID MARTINEZ** initiated and participated in the malicious prosecution of the Plaintiff **DWAYNE LYKEN**.

18. That at said time and place, Defendant **SERGEANT CHRISTOPHER O'CONNELL**, without a warrant, cause or provocation did seize, detain, arrest and imprison the Plaintiff **DWAYNE LYKEN**.

19. That at said time and place, Defendant **SERGEANT CHRISTOPHER O'CONNELL**, without a warrant, cause or provocation did assault the plaintiff **DWAYNE LYKEN** by using unnecessary and/or excessive fore on the plaintiff.

20. That Defendant **SERGEANT CHRISTOPHER O'CONNELL** initiated and participated in the malicious prosecution of the Plaintiff **DWAYNE LYKEN**.

21. That on or about January 11, 2016, the criminal charges against Plaintiff **DWAYNE LYKEN** were dismissed.

22. The conduct and actions of Defendant **POLICE OFFICER MARCOVAN WILSON**, Defendant **POLICE OFFICER REINALDO MERCADO**, Defendant **SERGEANT CHRISTOPHER O'CONNELL** and other unidentified Police Officers, acting under color of law, in physically abusing, assaulting and beating the plaintiff, in verbally abusing the plaintiff, and in falsely seizing, detaining, arresting, and imprisoning plaintiff, and in prosecuting the plaintiff was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the plaintiff's Constitutional Rights as guaranteed under 42 U.S.C. §1983, and the Fourteenth Amendment to the United States Constitution.

23. That as a result of the aforementioned occurrence, Plaintiff **DWAYNE LYKEN** was caused to sustain severe physical injury, mental and/or emotional distress, mental anguish, shock, emotional disturbance and psychic trauma and plaintiff had to extend money for medical care and legal expenses as well as damage and injury to his reputation, character and earning power.

24. By reason of the foregoing, Plaintiff **DWAYNE LYKEN** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

Violation of Rights Secured by 42 U.S.C. §1983 and the
Fourteenth Amendment to the United States Constitution
by Failing to Protect the Plaintiff from Unconstitutional Harm

25. The plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 24 as if fully set forth herein.

26. The conduct and actions of Defendant **POLICE OFFICER MARCOVAN WILSON**, Defendant **POLICE OFFICER DAVID MARTINEZ**, Defendant **SERGEANT CHRISTOPHER O'CONNELL** and other unidentified Police Officers, acting under color of law, in failing to take any steps to protect the plaintiff from the unjustified and unconstitutional treatment he was receiving at the hands of the police officer defendants, was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, and the Fourteenth Amendment to the United States Constitution.

27. That as a result of the aforementioned occurrence, Plaintiff **DWAYNE LYKEN** was caused to sustain severe physical injury, mental and/or emotional distress, mental anguish, shock, emotional disturbance and psychic trauma and plaintiff had to extend money for medical care and legal expenses as well as damage and injury to his reputation, character and earning power.

28. By reason of the foregoing, Plaintiff **DWAYNE LYKEN** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

Violation of Rights Under State Law

29. The plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 28 as if fully set forth herein.

30. By the actions described above, each and all of the defendants jointly and severally, have committed the following wrongful acts against the plaintiff, which are tortious under the laws of the State of New York:

- a. assault and battery of the plaintiff,
- b. trespass on the person of the plaintiff,
- c. false arrest and imprisonment of the plaintiff,
- d. negligence in causing injuries to the plaintiff,
- e. malicious prosecution
- f. abuse of power
- g. intentional infliction of emotional distress upon the plaintiff, in that the defendants intended to and did cause the plaintiff severe emotional distress, and the defendants' acts were outrageous in the extreme and utterly unacceptable in a civilized society;

- h. negligent hiring, screening, retention, supervision and training of defendant police officers by Defendant **THE CITY OF NEW YORK** and Defendant **THE NEW YORK CITY POLICE DEPARTMENT**;

- i. conspiracy by the defendants to commit all of the above acts;
- j. violation of rights otherwise guaranteed to the plaintiff under the laws and Constitution of the State of New York.

31. The foregoing acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

32. That as a result of the aforementioned occurrence, Plaintiff **DWAYNE LYKEN** was

caused to sustain severe physical injury, mental and/or emotional distress, mental anguish, shock, emotional disturbance and psychic trauma and plaintiff had to extend money for medical care and legal expenses as well as damage and injury to his reputation, character and earning power.

33. That this action falls within one or more of the exceptions as set forth in CPLR §1602.

34. By reason of the foregoing, Plaintiff **DWAYNE LYKEN** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION

Respondeat Superior Claim Under State Law

35. The plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 34 as if fully set forth herein.

36. The conduct of Defendant **POLICE OFFICER MARCOVAN WILSON**, Defendant **POLICE OFFICER REINALDO MERCADO**, Defendant **SERGEANT CHRISTOPHER O'CONNELL** and other unidentified Police Officers alleged herein, occurred while they were on duty and acting in and during the course and scope of their duties and functions as New York City police officers, and while they were acting as agents and employees of the Defendant **THE CITY OF NEW YORK** and Defendant **THE NEW YORK CITY POLICE DEPARTMENT**, and as a result the defendant **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** are liable to the Plaintiff pursuant to the state common law doctrine of respondent superior.

37. By reason of the foregoing, Plaintiff **DWAYNE LYKEN** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

ATTORNEY'S VERIFICATION

HEATH BUZIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **PHILLIPS, KRANTZ & BUZIN, P.C.**, attorneys of record for Plaintiff, **DWAYNE LYKEN** in the action within. I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

DATED: New York, New York
October 27, 2016



HEATH BUZIN